appointed, Ms Gulati admitted some of the most crucial documents relating to the case which ultimately led to Afzal's conviction—the identification document of the men who attacked Parliament (all of whom were killed) and the post- mortem reports.

Soon thereafter, Ms Gulati withdrew her appearance in favour of another accused. At that point, the judge appointed her junior Niraj Bansal as Afzal's lawyer. Afzal had no hand in making the choices. During the trial, he noticed that he was not being properly represented. Facts that he had admitted were being denied by Niraj Bansal. At that point, Afzal rejected Niraj Bansal and said he did not want the man to represent him. Notwithstanding the rejection, the Judge Dhingra insisted that Bansal continue, this time, as *amicus curiae*—a friend of the court! What this means is that Afzal was unrepresented, while the court had a 'friend' to assist it!

This shocks my conscience, as it should anyone else's, but apparently, the sessions court, the high court and the Supreme Court were all convinced that Afzal was adequately represented. The truth is exactly, and emphatically, the opposite.

Records show that Afzal was cross-examining witnesses himself. This he had to do without being provided with copies of the depositions that would have enabled him to point out the inconsistencies. Besides, cross-examination by an accused facing a death penalty is no substitute for cross-examination by a legally trained mind. What emerges is not only that Afzal did not have a lawyer, but that he actually rejected the lawyer thrust upon him, for what he perceived to be the man's incompetence! A greater mockery of the due process of law cannot be imagined. Afzal was denied the most basic right to legal aid.

The clinching evidence of this denial and its most devastating consequence came at the stage of sentencing. There was hardly any argument made at that stage to indicate the mitigating circumstances which could have led to a lesser sentence.

Disturbed by the turn of events and by the spectacle of people thirsting for his execution, I decided to examine the record. I was convinced that Afzal was unrepresented at the trial, leading to a massive miscarriage of justice. There was no question in my mind that the Supreme Court should be asked to revisit the issue in a 'curative' petition, a petition that can be filed if there has been a grave miscarriage of justice.